DOCUMENT 9 — COURT-WORKLOAD AND FISCAL MEMO (REVISION 5)

The test: does a provision remove a decision someone now asks a judge to make?

1. Removed from judges and magistrates

Today	Under the bill	Provision
A contempt hearing for each missed weekend	The FSEA decides; unopposed determinations are entered without a hearing	3109.047
Make-up time argued case by case	Mandatory, same type and duration	3109.047(D); 3109.051(K)
Implementation disputes litigated	Parenting coordinator first, where one exists	3109.047(B)
Years of history reconstructed	One enforcement record per order	3109.047(G)
An open-ended best-interest contest	A presumption with defined rebuttal grounds	3109.044(D)
Uncertain weight of an older child's wishes	A reasoned preference at 12+ is followed unless a stated exception applies	3109.044(F)
An unmarried father must sue for status	Status by operation of law	3109.042
Fee, deposit, and indigency disputes over required services	A clear rule: agreed, requested, or free	3109.053
Disputes over who decided a schedule change	Only a court or the parents' agreement	3109.045
Indefinite allegation-based restrictions	One clock, one resolution	3109.046

Revision 5 removes one item from Revision 4's list ("sanction amounts by schedule"), because the payments are deleted. Make-up time does the same work without a money dispute.

2. What moves to the FSEA

Parenting complaints (intake, order retrieval, notice and response, determinations, make-up time, the record, referral, contempt filing at thresholds) and support accounting (requests, records, redaction, shortfall determinations).

3. What remains judicial

Contempt and jail; custody and status changes; safety findings; protection orders; unclear orders; objections to FSEA determinations; first allocations; restoration motions; component designations beyond child care and deviations (on request); credits (entered by the court); criminal guilt.

4. New work

Courts: objections to FSEA determinations; ministerial entry of unopposed ones; a one-time wave of restoration motions and first schedule motions; 90-day and 30-month allegation hearings (pulled forward, not added); component designation requests (mostly at order entry or modification).

FSEAs: Part 2. New, and not IV-D reimbursable (45 CFR 304.20(b)).

Courts and counties: free court-required services, now including GALs.

5. Fiscal

Item	Direction	Note
FSEA parenting complaints	Cost (state and county)	Volume unknown; Michigan's Friend of the Court is the nearest model
FSEA accountings	Cost	Capped at one per order per year; where-not-what keeps review simple
Support-system change (component field)	One-time cost	Covered by the one-year delayed start
Free GALs, coordinators, evaluators, classes	**Largest cost**	Applies only where a parent did not agree or request. Courts may stop requiring paid services. **Statewide GAL fee volume is the key unknown** for LSC
Court contempt hearings	Savings	Routine denials go to the FSEA
Payments (Rev. 4)	—	Deleted; no collection or set-off administration
Offsets	Partial	42 U.S.C. 669b (small Ohio share) where legally available; existing local resources

Net: a modest court-workload reduction after a two-to-three-year transition. A real state and county cost, led by the service-cost rule and FSEA staffing. No parent-paid FSEA fee; no IV-D misuse; no new statewide office.